IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH,
PRAYAGRAJ

CP (CAA) No.4/ALD/2023 IN
CA (CAA) No.20/ALD/2022
(2nd Motion)

Under Section 230-232 of the Companies Act, 2013
In the matter of Scheme of Amalgamation between:

JINDAL QUALITY TUBULAR LTD.
(CIN: U28910UP2015PLC073321)

……. **Petitioner/ Transferor Company No.1**

JINDAL TUBULAR (INDIA) LTD.
(CIN: U28910UP2015PLC068768)

……. **Petitioner/ Transferor Company No.2**

JINDAL FITTINGS LTD.
(CIN: U27100UP2011PLC155473)

……. **Petitioner/ Transferor Company No.3**

WITH

JINDAL SAW LTD.
(CIN: L27104UP1984PLC023979)

……. **Petitioner/ Transferee Company**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies	: Mr. Shashi Kant Gupta with Mr. Ankit Kumar Singh, PCS
For ROC	: Mr. Pradeep Singh Sisodia, CGSC
For O.L. Alld/ RD (NR)	: Mr. Ajeet Kumar Singh, AOL

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ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **Jindal Quality Tubular Ltd. (**Petitioner/ Transferor Company No.1,), **Jindal Tubular (India) Ltd.** (Petitioner/ Transferor Company No.2,) **Jindal Fittings Ltd.** (Petitioner/ Transferor Company No.3,) and **Jindal Saw Ltd.** (Petitioner/ Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioners companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application seeking directions for dispensing with the requirement of convening of meetings of Equity Shareholders of the Applicant/ Transferor Company no.1, 2 & 3, meetings of the Preference Shareholders of the Applicant/ Transferor Company no.1 & 3, meetings of the Unsecured Creditors of Applicant/ Transferor Company no.1 & 3 and meetings of the Secured Creditors of Applicant/ Transferor Company no.1 & 3 and further prayed to convene the meetings of Equity Shareholders of the Applicant/ Transferee Company, meetings of Unsecured Creditors of Applicant/ Transferor Company no.2 and Applicant/ Transferee Company, meetings of Secured Creditors and also of the Secured listed Non-convertible debenture holders of Applicant/ Transferee Company vide Company Application No. CA (CAA) No.20/ALD/2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 24.01.2023 in First Motion order.

3. In the order dated 24.01.2023, the meetings of the Equity Shareholders of Petitioner/ Transferor Company No.1, 2 & 3, meetings of Preference Shareholders of the Petitioner/ Transferor Company no.1 & 3, meetings of the Secured Creditors of Petitioner/ Transferor Company no.1 & 3, meetings of the Unsecured Creditors

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of Petitioner/ Transferor Company no.1 & 3 were dispensed with, and further directed for convening and holding the meetings of Unsecured Creditors of Petitioner/ Transferor Company no.2 and for convening the meetings of Equity Shareholders, Secured Creditors, Unsecured Creditors and Secured listed Non-convertible debenture holders of Petitioner/ Transferee Company for the reasons mentioned in the aforesaid order.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 24.01.2023.

5. Notices are accordingly issued in the present petition by the Petitioner Companies, within two weeks by mentioning the PAN of the Company along with a copy of this petition by speed post immediately, to the following Authorities namely :-

(i) **Central Government through Regional Director, Northern Region**, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Pt. Deen Dayal Antodaya Bhawan, CGO Complex, New Delhi-110003;

(ii) **Registrar of Companies, Uttar Pradesh, Ministry of Corporate Affairs**, 37/17, Westcott Building, The Mall, Kanpur-208001, Uttar Pradesh;

(iii) **Official Liquidator, Allahabad, Ministry of Corporate Affairs**, Corporate Bhawan, 9th Floor, Sangam Place, Civil Lines, Allahabad-211001, U.P.;

(iv) **BSE Ltd.**,
Corporate Relation Department, 1st Floor, New Trading Ring, Rotunga Building, Phiroze Jeejeebhoy Towers, Mumbai-400001, Maharashtra;

(v) **National Stock Exchange of India Limited**,
Listing Department, Exchange Plaza, Bandra Kurla Complex, Bandra (East), Mumbai-400051, Maharashtra;

(vi) **Jurisdictional Income Tax Authority**.

6. Mr. Pradeep Singh Sisodia, Ld. CGSC present on behalf of ROC and Sh. Ajeet Kumar Singh, AOL present on behalf of Official Liquidator, Allahabad, accept notice for the same. Let additionally notice be issued to the concerned ROC and RD (NR) and concerned Income Tax Authorities (Nodal Officer as appointed by

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CBDT vide its order dated 17.03.2023), as mentioned in para above.

7. In addition to the above public notices, the notice of hearing will also be advertised in "Financial Express" in English and "Jansatta" in Hindi language, having wide circulation in District Mathura Edition by not less than 10 days before the next date fixed for hearing.

8. The petitioner companies shall at least 7 days before the date of hearing of the petitionfile an affidavit of notice regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on 7th June, 2023 for further consideration.

10. The registry shall also report before the date fixed for next hearing, as to whether any objection has been received to the proposed 'Scheme'.

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(Ashish Verma)
Member (Technical)

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(Praveen Gupta)
Member (Judicial)

April 19th, 2023